

## 24STCV18663 24STCV18663

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-08

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C510%2C07%2F08%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F08%2F2026)

Source SHA-256: 59c99448ffef4e2473ccb78f69042c1e472f321edcff0c725f9d89aa2cc5f7a2

Case Number: 24STCV18663 Hearing Date: July 8, 2026 Dept: 510

No.

13 - Caroline Lipe v. J. Frank Associates, LLC, et al.

Plaintiff

Caroline Lipe's Motion to Compel Further Responses to Requests for Production

Plaintiff

Caroline Lipe moves to compel Defendant J. Frank Associates, LLC to serve further responses to requests for production. Specifically, Plaintiff seeks further responses to request nos. 28 and 30-38.

Meet

and Confer

Motions

to compel further responses must include "a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b)(2).) The moving party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) This rule aims "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

The

parties dispute whether there was an adequate meet and confer effort. Upon reviewing the email correspondence between the parties, the Court finds that Plaintiff did not adequately exhaust meet and confer efforts before filing the instant motion. (See Davis Decl., Ex. H.) Defendant acted in good faith to

resolve the discovery disputes at issue in this motion. For example, on May 11, 2026, two days before this motion was filed, Defendant promised to supplement responses to request nos. 28, 30, and 34-38. For the remaining three requests at issue, Defendant communicated that no responsive documents existed, but still asked Plaintiff to provide additional details to aid them in a further search. (See Ex. H, at p. 5.) Defense counsel promised it would serve further responses by May 22, 2026. (Id., at pp. 3-4.) Despite the parties' mutual agreement to extend their respective motion to compel deadlines to June 5, 2026, Plaintiff filed this motion on May 13th. (See id. at pp. 1-2.) This conduct demonstrates that Plaintiff's counsel did not wish to meaningfully meet and confer with Defense counsel to narrow the discovery issues before seeking relief from this Court.

Thus, Plaintiff failed to meet and confer in good faith before she filed his motion. Any future failure or refusal to participate in a required good faith meet and confer process will likely result in sanctions against the offending party.

The Court continues the hearing on this motion to August 6, 2026, to allow the parties time to meet and confer on the discovery issues raised.

#### Disposition

#### Plaintiff

Caroline Lipe's motion to compel Defendant J. Frank Associates, LLC to serve further responses to requests for production is continued to August 6, 2026 at 8:30 AM. The parties are ordered to file a joint statement on or before July 30, 2026 regarding which specific discovery requests, if any, remain at issue for the Court to decide.

#### Defendants'

#### Motion to Compel "Volume Three" of Plaintiff's Deposition

#### Defendants J. Frank Associates, LLC

and Eric Brielmann move, under Code of Civil Procedure section 2025.450, to compel Plaintiff Caroline Lipe to appear for "Volume Three" (presumably Defendants mean Day Three) of her deposition.

"An

oral deposition shall be scheduled for a date at least 10 days after service of the deposition notice.” (Code Civ. Proc., § 2025.270(a).) “The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280(a).) “If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony.” (Code Civ. Proc., § 2025.450(a).)

The

Court cannot compel the relief that Defendants seek here.

Defendants

noticed Plaintiff's two-day deposition for March 25 and 26, 2026. (Laba Decl., Ex. B.) Plaintiff appeared for these in-person depositions and testified on the record for approximately 14 hours. (Laba Decl., ¶ 4.) Since then, Defendants have informally requested a third session of Plaintiff's deposition, but did not serve a notice of deposition until the date this motion was filed. (Davis Decl., ¶¶ 8-11; Davis Reply Decl., ¶ 14.) This notice includes a deposition date for July 29, 2026. (Davis Reply Decl., Ex. D.) Under the Code, the Court cannot compel Plaintiff to attend a future deposition for which she has not failed to appear. Further, there is no good cause to compel attendance at a deposition based on Plaintiff's counsel's informal representations that Plaintiff will not appear.

Defendants request \$1,912.50 in sanctions for bringing this motion. This motion was unsuccessful. The Court declines to award sanctions.

Disposition

Defendants J. Frank Associates, LLC

and Eric Brielmann's motion to compel Plaintiff Caroline Lipe to appear for Volume Three of her deposition is denied.

Plaintiff

Caroline Lipe's Motion to Quash Defendants' Second Subpoena for Plaintiff's

## Education Records from Tulane University Law School

### Plaintiff

Caroline Lipe moves to quash Defendants' second subpoena seeking her education records from Tulane University Law School.

### Quashing

### Subpoena

### Upon

a party's motion, a court "may make an order quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1(a).)

### This

is Plaintiff's second motion to quash Defendants' subpoena seeking Plaintiff's education records. Defendants' first subpoena directed to Tulane Law School requested: "All student records, including but not limited to, application for admission, course schedules, disciplinary records, grading records, degree(s) obtained and/or sought, honors obtained and/or sought and any correspondence and notes concerning: Name: Caroline J. Lipe." (Laba Decl., Ex. B, at p. 6.) The Court granted Plaintiff's initial motion to quash, finding that the subpoena was overbroad, sought irrelevant information, and violated Plaintiff's privacy rights.

### After

the Court's ruling, Defendants subsequently served a "narrowed" subpoena purportedly to address the Court's concerns. The second subpoena at issue in this motion requests the following:

- "Application(s)  
for admission

- Personal  
statement, essay, and/or cover letter submitted with application(s);

- Records

that reflect date of the LSAT examination corresponding to the LSAT score submitted in connection with application;

- Records

and/or communications referencing Ms. Lipe's prior employment at J. Frank Associates, LLC;

- Records

and/or communications referencing Ms. Lipe's desire to go to law school, including when Ms. Lipe made the decision to go to law school;

- Records

and/or communications between Ms. Lipe and the law school regarding accommodations requested by, considered for, and/or provided to Ms. Lipe;

- Records

and/or communications between Ms. Lipe and the law school regarding any requests by Ms. Lipe for time off from school;

- Records

and/or communications between Ms. Lipe and the law school regarding any requests by Ms. Lipe for a private space to administer medications;

- Ms.

Lipe's course schedules reflecting courses taken, completed, and/or dropped;

- Ms.

Lipe's law school transcripts reflecting grades received for courses taken; and

- Records

and communications maintained by the law school's Career Development Office (CDO) pertaining to Ms. Lipe."

This

new subpoena remains extremely overbroad as drafted and seeks information that is irrelevant to the issues in this case. For example, it is unclear how law school grades or course schedules would have any bearing on the issues of this case. Defendants do not explain the relevance of these records beyond a conclusory statement that all records sought address "Plaintiff's alleged disability and need for accommodations, Plaintiff's mitigation of damages,

Plaintiff's claimed loss of earnings and emotional distress, Plaintiff's credibility, and Plaintiff's post-termination withdrawal from the labor market." (Davis Decl., ¶ 23.)

#### Sanctions

##### Plaintiff

requests \$3,057 in sanctions against Defendants. Code of Civil Procedure section 1987.2, subdivision (a) provides, "[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." Defendants unsuccessfully opposed this meritorious motion and did so without substantial justification. This subpoena should have been significantly narrowed during the parties' meet and confer efforts, especially after the Court noted the improper overbreadth of the original subpoena. The Court exercises its discretion to award the requested sanctions in full.

#### Disposition

##### Plaintiff

Caroline Lipe's motion to quash Defendants' second subpoena directed to Tulane University Law School is granted. The Court hereby quashes the entire subpoena to Tulane University Law School.

##### Defendants

J. Frank Associates, LLC and Eric Brielmann and their counsel, jointly and severally, are ordered to pay Plaintiff \$3,057 in sanctions within 21 days.